

25NWCV01273 25NWCV01273

County: los-angeles

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Case Number: 25NWCV01273 Hearing Date: July 6, 2026 Dept: SED

BLAKE A. COSTA V.

HYUNDAI MOTOR AMERICA, ET AL.

CASE NO.: 25NWCV01273

HEARING: 07/06/2026 @

9:30 a.m.

#12

TENTATIVE ORDER

Defendants Hyundai Motor

America and Genesis Motor America LLC's motion to set aside defaults is DENIED.

Moving parties to give notice.

Defendants Hyundai Motor America

and Genesis Motor America LLC (collectively, Defendants) move for an order to set aside the defaults against them on June 10, 2025.

Background

On April 10, 2025, Plaintiff

Blake A. Costa (Plaintiff) filed the operative complaint against Defendants and Does 1 through 20, inclusive, asserting two causes of action: (1)-(2) Breach of Implied Warranty of Merchantability and Express Warranty under the Song-Beverly Warranty Act.

On April 11, 2025, Plaintiff served Defendants by personal service.

On June 10, 2025, Plaintiff requested entry for default. The clerk entered the default on the same day.

On May 14, 2026, Defendants filed the instant motion.

On June 22, 2026, Plaintiff filed an opposition.

No reply has been filed.

Analysis

Code

of Civil Procedure section 473, subdivision (b)

The court has broad discretion to vacate the entry of default, default judgment, or a dismissal where the moving party timely establishes a proper ground for relief. (*Cruz v. Fagor America, Inc.* (2007) 146 Cal.App.4th 488, 495.) Code of Civil Procedure section 473, subdivision (b) contains two distinct provisions for relief from default. The first provision is discretionary and broad in scope, providing: "The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., §473, subd. (b).) Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (*Ibid.*)

The general underlying purpose of Code of Civil Procedure section 473, subdivision (b) is to promote the determination of actions on their merits.

(*Even Zohar Const. & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830, 838-839.)

Here, Defendants seek relief under the discretionary provision of Code of Civil Procedure section 473, subdivision (b), on the grounds of mistake, inadvertence, surprise or excusable neglect by a party. (Code of Civ. Proc., § 473, subd. (b).)

Relief under the discretionary provision of section 473, subdivision (b), however, must be sought "within a reasonable time, in no case exceeding six months" after entry of the default. (Code Civ. Proc., § 473, subd. (b).)

The Clerk entered Defendants' defaults on June 10, 2025. Defendants did not file the instant motion until May 14, 2026, nearly eleven months after entry of default. Accordingly, the motion is untimely under Code of Civil Procedure section 473, subdivision (b), and the Court lacks authority to grant discretionary relief under that statute.

Accordingly, Defendants are not entitled to relief under Code of Civil Procedure section 473, subdivision (b).

Conclusion

Based on the foregoing, Defendants Hyundai Motor America and Genesis Motor America LLC's motion to set aside defaults is DENIED.